

Genuine Steps Certificate

Central Practice Direction – Family Law Case Management

Please type or print clearly. Attach extra pages if you need more space to answer any questions.

Note: This document must be filed at the same time as an *Initiating Application or Response to Initiating Application*.

Failure to comply with the relevant pre-action procedures may result in the application being stayed.

Filed on behalf of: Stephen Christopher Cooke
(specify full name of party)

COURT USE ONLY

Client ID _____

File number

Filed at NEWCASTLE

Filed on

Court location

Part A About the parties

APPLICANT 1

Family name as used now

Cooke

Given names

Stephen Christopher

RESPONDENT 1

Family name as used now

Cooke

Given names

Heather Anne

If you are the **applicant**, please complete **Parts A, B and D** of this form.

If you are the **respondent**, please complete **Parts A, C and D** of this form.

Filed on behalf of: The Applicant

Prepared by Samantha Jane Miller

Lawyer's Code CLA7584701

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Part B**Pre-Action Procedures and Genuine Steps
(to be completed by the applicant)**

Note: See Schedule 1 of the Rules for the required pre-action procedures, and rule 4.01(2) for exemptions from compliance with the pre-action procedures.

1. I, the applicant, have read and understood the **pre-action procedures**: ☒ Yes ☐ No

2. I, the applicant, have complied with the following pre-action procedures: *(Tick all that apply)*

- ☐ Given a copy of the pre-action procedures to all other parties to the proceeding
- ☐ Made inquiries about available **dispute resolution services**
- ☒ Invited the other party/ies to participate in **dispute resolution**
- ☐ Participated in **dispute resolution** with the other party/ies
- ☒ Given the other party/ies **written notice** of their intention to start proceedings
- ☐ Cooperated with the other party/ies to agree on an appropriate dispute resolution service
- ☐ Exchanged copies of **relevant documents** with the other party/ies

3. I, the applicant, have taken **genuine steps** to resolve the dispute before filing the *Initiating Application*: ☒ Yes ☐ No
- ☐ It is not safe to do so

Note: you must explain why it is not safe for you to comply with the pre-action procedures in the affidavit filed in support of your *Initiating Application*.

4. I, the applicant, am seeking an exemption from either or both of (2) and (3) for the following reason/s: *(Tick all that apply)*

- ☐ There are allegations of child abuse or family violence or risk of child abuse or family violence
- ☒ My application is urgent
- ☐ I would be unduly prejudiced if required to complete the pre-action procedures
- ☐ A previous family law application has been filed by one of the parties in the last 12 months

Note: you must provide the factual basis for the exemption sought in the affidavit filed in support of your *Initiating Application*.



Part C**Pre-Action Procedures and Genuine Steps
(to be completed by the respondent)**

Note: See Schedule 1 of the Rules for the required pre-action procedures, and rule 4.01(2) for exemptions from compliance with the pre-action procedures.

1. I, the respondent, have read and understood the **pre-action procedures**: ☐ Yes ☐ No

2. I, the respondent, have complied with the following pre-action procedures: *(Tick all that apply)*

- ☐ Cooperated with the other party/ies to agree on an appropriate **dispute resolution services**
- ☐ Participated in **dispute resolution** with the other party/ies
- ☐ Exchanged copies of **relevant documents** with the other party/ies
- ☐ Responded to the other party/ies **written notice** of their intention to start proceedings

3. I, the respondent, have taken genuine steps to resolve the dispute before filing the *Response to Initiating Application*: ☐ Yes ☐ No
☐ It is not safe to do so

Note: you must explain why it is not safe for you to comply with the pre-action procedures in the affidavit filed in support of your *Response to Initiating Application*.

4. I, the respondent, am seeking an exemption from either or both of (2) and (3) for the following reason/s: *(Tick all that apply)*

- ☐ There are allegations of child abuse or family violence or risk of child abuse or family violence
- ☐ My application is urgent
- ☐ A previous family law application has been filed by one of the parties in the last 12 months

Note: you must provide the factual basis for the exemption sought in the affidavit filed in support of your *Initiating Application* or *Response to Initiating Application*.

5. I agree with the contents of the *Genuine Steps Certificate* filed by the applicant: ☐ Yes ☐ No

Note: if you disagree with the contents of the *Genuine Steps Certificate* filed by the applicant, you must explain why in the affidavit filed in support of your *Response to Initiating Application*.

Part D**Statement of Truth**

I certify that the contents of this *Genuine Steps Certificate* are true and correct.

I acknowledge there may be consequences for any non-compliance with the pre-action procedures.

Signed

DocuSigned by:

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Date

/12/2023 5/12/2023

Signed by



the applicant



the respondent



lawyer for the applicant/respondent

This document was signed and witnessed over audio visual link in accordance with section 14G of the Electronic Transactions Act 2000.

